

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1070

By: Lowe (Jason)

AS INTRODUCED

An Act relating to criminal procedure; granting arrested persons the right to make telephone calls within certain period of time; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 212 of Title 22, unless there is created a duplication in numbering, reads as follows:

Immediately upon being arrested and booked into a city or county jail facility, and except where physically impossible, no later than forty-eight (48) hours after arrest, an arrested person has the right to make at least three completed telephone calls at no expense if the calls are completed to telephone numbers within the local calling area, or at his or her own expense if outside the local calling area, to the following:

1. An attorney of his or her choice or, if he or she has no funds to pay for an attorney of his or her choice, the public defender, or other attorney assigned by the court to assist

1 indigents, whose telephone number shall be posted within the city or
2 county jail facility;

3 2. A bail bondsman; and

4 3. A relative or other person chosen by the arrested person.

5 The telephone calls shall be provided immediately upon request, or
6 as soon thereafter as practicable.

7 SECTION 2. This act shall become effective November 1, 2025.

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9 60-1-10501 GRS 12/18/24

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